AGRICULTURAL AND RURAL DEVELOPMENT AUTHORITY
versus
WILLARD MBONA

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE; 22 &26 May 2026

Urgent Chamber Application

Mr B. Magogo, for the applicant,
Mr K. Musona, for the respondent,

[1] This is an opposed urgent chamber application for a stay of execution of the judgment granted in HCH4575/25, pending the determination by the Supreme Court of an application for condonation, reinstatement, and extension of time in case SC491/26. The broad question is whether, in the peculiar circumstances of this matter, real and substantial justice is better served by allowing execution to proceed, or by preserving the position until the Supreme Court determines whether the appeal process should be restored.

[2] The background is largely common cause. Following the registration of an arbitral award in HCH4575/25, the applicant noted an appeal to the Supreme Court under SC1052/25 on 23 December 2025. The notice of appeal tendered the costs of preparation of the record and the respondent's security for costs in terms of the Supreme Court Rules.

[3] On 20 January 2026, the High Court registry issued a letter advising that, because the parties had not inspected the prepared record within the period contemplated by r 24(11), the appeal was regarded as abandoned and dismissed in terms of r 24(12). On the same date, the Supreme Court registry issued a corresponding notice treating the appeal as abandoned and dismissed. Those steps are reflected in Annexures C1 and C2 in the consolidated record.

[4] The applicant immediately protested that neither it nor the respondent had, through the IECMS portal, received a notification inviting inspection of the record. In its letter to the Registrar of the Supreme Court, the applicant stated that no inspection notice had appeared on its notification bar and that it was being prejudiced by non-performance of an act of which it had never been notified. That complaint is reflected in Annexure D and summarized again in the founding affidavit.

[5] The papers further show that the Supreme Court registrar advised that the difficulty had arisen from the recommendation of the court a quo's registry and that rectification had to originate there. The applicant then approached the High Court registrar. On 21 January 2026, the High Court registrar acknowledged the complaint and attached the invitation to inspect the record dated 31 December 2025. That post-dismissal correspondence is reflected in Annexures F, G and H. Annexure H is particularly significant because it expressly invited the parties to inspect the record in terms of r 24(11), notwithstanding the earlier dismissal.

[6] After that, the matter proceeded as though the appeal was alive. The parties were allowed to inspect the record and to sign the relevant certificates. On 22 January 2026, the Registrar determined the respondent's security for costs at USD 1 500, payable by 27 January 2026. On 27 January 2026, the respondent's legal practitioners wrote to enquire whether the security had been paid. On 28 January 2026, the Supreme Court registry confirmed that payment had in fact been made. These events appear from Annexures I, J and K.

[7] That sequence is critical. It means that after the appeal had notionally been treated as abandoned, both registries nevertheless permitted further procedural steps that presupposed the continuing existence of an appeal: inspection of the record, certification, assessment of security, payment of security, and confirmation of such payment. The position was therefore not one of simple default followed by inactivity. It was one of administrative ambiguity created, in substantial part, by the registries themselves.

[8] The applicant says that nothing thereafter suggested the matter had stalled until the respondent caused a writ of execution and a notice of seizure to issue, culminating in the

Sheriff's attendance on or about 19 May 2026. It was only then, after urgent enquiries, that the applicant says it discovered that the matter had not been moved on the system from the abandoned status to an active appellate stage. It then filed SC491/26 seeking condonation and reinstatement.

[9] The respondent's opposition is not without force. He says the need to act arose on 20 January 2026 when the appeal was deemed abandoned; that the applicant was expressly told to proceed in terms of the rules; that the IECMS dashboard remained in a dismissed state; and that payment of security for costs could not, by itself, resuscitate an appeal already abandoned. He also says the applicant had behaved similarly in Labour Court proceedings and that the present application is merely another delay tactic. Those submissions appear in the notice of opposition and opposing affidavit.

[10] In my view, the issue is not whether the respondent's legal argument on reinstatement is arguable. It plainly is. Nor is this court sitting as the Supreme Court to decide whether SC491/26 will succeed. The immediate question is narrower: in light of the conduct of the registries and both litigants after 20 January 2026, would it now be just to permit execution to proceed before the Supreme Court has determined whether the abandoned appeal should be restored?

[11] The applicable principles are settled. A court has inherent power to control its own process and may stay execution where real and substantial justice so demands. In *Santam Insurance Co Ltd* v ***Paget* 1981 (2) ZLR 132 (H)** it was held, adopting ***Cohen* v *Cohen* *1*979(1) RLR 184 (GD); 1979 (3) SA 420 ®**, that the court may stay the use of its process of execution where real and substantial justice requires it. In ***Mupini* v *Makoni* 1993 (1)** ZLR 80 (S) the Supreme Court stated that execution is a process of the court, that the court has an inherent power to control that process, and that the onus rests on the party seeking the stay to show special circumstances. Those propositions have been repeatedly applied in later Zimbabwean decisions.

[12] It is equally true that where a judgment sounds in money, execution is generally allowed, because restitution is often possible. But that is a general rule only. The court's discretion remains fact-sensitive. Where irreparable prejudice, procedural unfairness, or a serious

distortion of the appellate process would result, the court may intervene notwithstanding that the underlying judgment is monetary.

[13] The rules relied on by both parties are peremptory. The consolidated record cites r 24(11) and r 24(12) of the Supreme Court Rules, 2025 in both the dismissal letter and the invitation to inspect. The operative effect is that if an appellant does not inspect the prepared record within ten days after invitation, the registrar notifies the Supreme Court registrar and the appeal is regarded as abandoned and deemed dismissed. **The Supreme Court Rules** contain the same operative language on inspection of the record.

[14] The same is so regarding security for costs. The rules require that where execution is suspended pending appeal and the respondent has not waived security, the appellant must furnish good and sufficient security for the respondent's costs of appeal. If the parties cannot agree on amount or nature, the Registrar determines it and specifies the period for payment. Failure to furnish such security within the stipulated period results in the appeal being regarded as abandoned and deemed dismissed. That wording appears in the Rules and is echoed in the authorities dealing with security-based abandonment.

[15] The rules also provide the answer to what follows after abandonment. In *Chandra Goyel* v *Myrammar Farming (Pvt) Ltd t/a* ***Cottonzim & Ors*****, SC 59/24** the Supreme Court made it plain that where an appeal has been deemed abandoned and dismissed, it is removed from the roll, and the proper way to revive it is by seeking reinstatement. Rule 70, as quoted in that judgment, allows an appellant, within fifteen days of notification, to apply for reinstatement on good cause shown.

[16] Further, the authorities on reinstatement and condonation show that "good cause" ordinarily entails a reasonable explanation for the default together with prospects of success on appeal. That is clear from ***Tel-One (Pvt) Ltd*** **v** ***Communication and Allied Services Workers Union of Zimbabwe*** **SC26/06,** *Bessie Maheya* v *Independent Africa Church*, **SC58/07** and *Conju Incorporated (Pvt) Ltd* v *Registrar of the Supreme* ***Court & 3 Ors*** **SC 28/20**, as discussed in later Supreme Court judgments. I emphasize again that those are matters for the Supreme Court in SC491/26, not for this court. I refer to them only to show

that the pending process is a recognized and structured remedy under the Rules, not an invented expedient.

[17] On urgency, I do not agree that the matter is fatally self-created. The test in our law is whether, when the need to act arises, the matter cannot wait without rendering the relief nugatory; and whether any delay has been sensibly explained. That general approach is reflected in the authorities following *Kuvarega* v *Registrar-General and Anor* 1998 (1) ZLR 188(H) and *Gifford* v *Muzire and Ors* (HC4954 of 2007 [2007] ZWHHC 69.

[18] In the present case, the respondent is correct in saying that the legal difficulty began in January 2026. But that is not the end of the matter. After the January dismissal letters, the registries themselves did not behave as though the appeal was finally dead. The High Court registrar furnished the invitation to inspect; the parties inspected; the Supreme Court registrar assessed security; the applicant paid; and the respondent himself made enquiries about payment rather than insisting that there was no extant appeal at all. Those objective events reasonably conveyed that the appellate process, though administratively irregular, was continuing.

[19] It follows that the present urgency crystallized when execution was actually launched on the strength of a procedural lacuna that had been masked by the subsequent conduct of the registries. Had the registries done nothing after 20 January 2026, the respondent's urgency point would have carried greater force. But they did much more than nothing. They affirmatively conducted themselves in a manner consistent with an extant appeal. In those circumstances, I am unable to hold that the applicant manufactured the urgency that now confronts the court.

[20] I also agree, in substance, with the applicant's submission that once the matter had been treated as abandoned, there should not ordinarily have been a record to inspect, nor respondent's security to assess and pay, absent a formal reinstatement. That is precisely what makes this case exceptional. The registrar's post-dismissal conduct introduced official uncertainty into what should have been a rule-bound process. The applicant cannot be exonerated entirely, because a litigant bears ultimate responsibility for following up its case. But neither can it fairly be said that the present malaise is wholly of its own making.

[21] I am also unable to ignore the respondent's own role in the post-dismissal sequence. He participated in the inspection process and affirmatively enquired whether security had been paid. He did not, at that stage, challenge the premise that there still existed an appeal-related process in which security might competently be demanded and furnished. Having taken part in that course, he cannot now, with full equitable force, insist that every step after 20 January 2026 was a nullity which only the applicant should bear.

[22] None of this means that the abandoned appeal was magically reinstated by administrative conduct. It was not. The authorities are clear that reinstatement is the proper route. But it does mean that, pending the Supreme Court's decision on whether reinstatement should be granted, it would be unjust to permit one party to secure the fruits of execution by relying on an unresolved procedural defect to which the registries and, to a limited extent, both parties contributed.

[23] This case therefore presents the sort of "special circumstances" contemplated in *Mupini* v *Makoni supra* and related authorities. The special circumstance is not merely that an appeal was abandoned. It is that, after the abandonment, the official machinery of the courts continued to process the matter as though the appeal remained alive, thereby inducing a reasonable belief that the process had been regularized or was in the course of being regularized. Execution in the face of that ambiguity would, in my view, work an injustice.

[24] I have considered the fact that the respondent is an elderly former employee and that delayed enforcement may cause him real hardship. That consideration weighs heavily with the court. But hardship alone cannot justify allowing execution to proceed where the integrity of the appellate process has been materially compromised by official irregularity. The temporary prejudice to the respondent is delay. The prejudice to the applicant, if execution proceeds and the Supreme Court later restores the appeal, is the prospect of execution overtaking a live appellate remedy. On balance, the status quo should be preserved until SC491/26 is decided.

[25] As to costs, the applicant has succeeded. Ordinarily that would entitle it to costs. I do not think, however, that this is an ordinary case. The procedural confusion was materially generated by the registries. The respondent's legal stance was arguable, even though I reject

it for present purposes. Costs however shall be determined when the matter comes up for confirmation.

[26] In the result, the application must succeed.

INTERIM RELIEF GRANTED:

Pending the confirmation of the final order sought, it is ordered that,

1. The writ of execution and all consequential execution process issued under case number HCH4575/25, including the notice of seizure dated 19 May 2026, be and are hereby stayed pending the final determination of Supreme Court case number SC491/26.

MAMBARA J……

Mushoriwa Moyo, applicant's legal practitioners
Musoni Law Chambers, respondent's legal practitioners